

The Merchant Shipping (Distressed Seamen) Rules, 1960

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[G.S.R. 1552, dated 17th December, 1960. - In exercise of the power conferred by section 167 of the Merchant Shipping Act, 1958 \(](#)

[44 of 1958](#)

[\), and in supersession of all existing rules, orders and regulations on the subject, the Central Government hereby makes the following rules, namely:-](#)

[1.](#)

[Short title and Commencement.](#)

[\(1\)](#)

These rules may be called the Merchant Shipping (Distressed Seamen) Rules, 1960.

(2)

They shall come into force on the 1st day of January 1961.

2.

Definitions.

- In these rules-

(a)

'Act' means the Merchant Shipping Act, 1958;

(b)

'Form' means a form set out in Schedule I;

(c)

'Schedule' means a schedule to these rules.

3.

Application for relief.

(1)

Every application for relief and maintenance under section 161 of the Act shall be made by the distressed seaman, in writing and be presented in person to the Indian Consular officer at or near the place where the applicant is in distress, within three months of his having left his last ship.

(2)

Every applicant under sub-rule (1) shall also fill in and sign an affidavit in form 'A' before the Indian Consular officer.

(3)

Where the Indian Consular Officer is satisfied that, on account of illness or other sufficient cause, a distressed seaman is not able to write the application or present it in person, the Indian Consular Officer may accept an application made by any other person on behalf of the distressed seaman.

4.

Duty to arrange for relief.

- The Indian Consular Officer if he is satisfied that the applicant is distressed seaman who is entitled to relief and maintenance under the Act, shall take steps to arrange for his relief and maintenance in accordance with these rules.

5.

Finding employment.

(1)

If he is satisfied by medical certificate or otherwise that the distressed seaman is fit for work, the Indian consular officer shall, wherever possible, find an employment for the distressed seaman in the same or similar capacity to that which the seaman was holding in his previous ship.

(2)

If a seaman, to whom an offer of employment to the nature referred to in sub-rule (1) is made refuse to take up the employment, he shall cease to be entitled to any relief or maintenance from the date of such refusal.

6.

Relief and maintenance till repatriation or employment.

(1)

distressed seaman shall be given relief and maintenance till arrangement are made for his return to the proper return port or till a suitable employment is found for him.

(2)

Such relief and maintenance shall consist of-

(a)

Maintenance,

(b)

essential clothing and bedding which shall as far as possible be of the quality to which he is accustomed, and

(c)

where necessary, medical care and reasonable medical expenses.

(3)

It shall be the duty of the Indian Consular Officer to see that the expenses on account of the relief and maintenance of a distressed seaman is kept at the minimum; in no case money payment shall be made to the distressed seaman.

7.

Period of relief.

- Subject to the provisions of these rules, a distressed seaman shall receive relief for so long as the Indian Consular Officer considers it necessary; and in every case in which relief is given beyond a period of one month, such officer shall report the circumstance of the case to the Director-General.

8.

Shipwrecked Seamen.

- In cases of shipwreck, the Indian Consular Officer shall afford relief and maintenance to a seaman only from such time as he causes to be employed to look after the ship's property and cargo, or for salvage purpose, even though the seaman has applied for relief while he is still employed on such duties.

9.

Discharged Seaman.

(1)

The Master of a ship who desires to deposit the expenses for the maintenance and repatriation of a discharged seaman referred in sub-section (3) of section 162 of the Act, shall deposit the expenses with the Indian Consular Officer by whose authority such seaman was discharged.

(2)

The Indian Consular Officer may, at his discretion, return such seaman to the proper return port in accordance with the provision of these rules.

10.

Repatriation of distressed Seamen

- When an Indian Consular Officer is unable to place a distressed seaman on board an Indian ship in want of men to make up its complement, he shall, at his discretion, send such seaman to his proper return port or to a port en route to such port as early as possible, by any other of the modes referred to in sub-section (2) of section 162 of the Act.

11.

Conveyance by foreign ship.

- Whenever no Indian ship is available in which a distressed seaman can be sent either to a proper return port or to a port en route thereto, the Indian Consular Officer may, if he considers it desirable, secure a passage for him in a foreign ship on the best terms obtainable and shall advise the Shipping Master at the proper return port or the Indian Consular Officer at an intermediate port, as the case may be, of the terms agreed upon.

12.

Return Port to be specified.

- The Indian Consular Officer, having determined the return port to which a distressed seaman is entitled to be sent, shall indicate that port on any document issued by him for the conveyance of the seaman to such port or any port or place en route to the proper return port.

13.

Action of Indian Consular Officer at places en route.

- When a distressed seaman is landed at a port or place en route to his proper return port, the Indian Consular Officer at that port or place shall take similar action in respect of the seaman as could have been taken by the Indian Consular Officer at the port or place at which the seaman was originally in distress.

14.

Endorsement on the Agreement with the Crew and Issue of Conveyance Order.

(1)

The endorsement on the agreement with the crew mentioned in sub-section (1) of section 164 of the Act shall be in one of the following forms :-

(a)

When the seaman is placed on board an Indian ship to make up the complement of her crew :-

"I hereby certify that I have sanctioned the engagement of the within-mentioned seaman/seamen entered on the lines _____ upon the terms mentioned in the within mentioned agreement and that he has/they have

signed fully undersigned the same".

(b)

When the seaman is not employed as a member of the crew but is afforded a passage on an Indian ship in accordance with the provisions of section 163 of the act :-

"Certifies that I have this day placed on board this ship Shri _____ ex S.S./MS _____ as a Distressed Seaman for conveyance to _____. The requisite Conveyance Order has been handed over to the Master".

(2)

When a seaman is placed on board an Indian ship in accordance with the provisions of rule 10, the Indian Consular Officer shall fill in, sign and deliver to the Master of such ship, a Conveyance Order in form 'B' showing the report to which the seaman is entitled to be sent.

(3)

Whenever it becomes necessary to send a distressed seaman to his proper return port or to any other port or place by a mode other than the one mentioned in sub-rule (2) of this rule (i.e. by road, rail, air or by sea as a passenger on a foreign ship), the Indian Consular Officer shall hand over to the seaman, form 'C' duly filled in and signed.

15.

Rates of Passage.

(1)

On arrival at the port to which a seaman has been conveyed, the Master of the conveying ship shall produce the Conveyance Order to the Indian Consular Officer at the port, if the port is a foreign one, or to the Shipping Master if it is an Indian port, after duly filling in and signing Part 3 thereof.

(2)

The Master of the conveying ship shall be paid by such officer at the rate prescribed in Schedule II in respect of the subsistence of every distressed seaman conveyed by him exceeding the number, if any, wanted to make up the complement of his crew, unless the officer, has reason to doubt the correctness of the Declaration or of any of the particulars in form 'B'. In case of doubt, the payment shall be deferred and the matter reported to the Director-General of Shipping for orders.

16.

Rescued Seaman.

(1)

Masters of ship and tinders of sailing vessels who have rescued or picked up seaman at sea shall on arrival at port and on application made in writing, to the Shipping Master or in a foreign port, to the Indian Consular Officer, be entitled to be paid by the Shipping Master or the Indian Consular Officer, as the case may be, subsistence in respect of such seamen.

(2)

The application referred to in sub-rule (1) shall state the number of days during which each distressed seaman received subsistence on the rescuing vessel.

17.

Seaman mentally deranged.

(1)

In order to provide for the passage to the proper return port of a distressed seaman suffering from mental derangement, the Indian Consular Officer may, with the object of ensuring that requisite care and attendance is given to the seaman during the voyage, make special arrangements with the Master of the ship and may agree to the payment, if necessary, of such sum as may appear fair and reasonable for the passage in addition to the prescribed allowance.

(2)

A copy of the agreement entered into by the Indian Consular Officer shall in every case, be forwarded, as soon as possible, to the Shipping Master at the port at which the distressed seaman was originally engaged. If such seaman is sent to an intermediate port in transit, a copy of the agreement shall also be endorsed to the Indian consular Officer or Shipping Master at that port as the case may be.

(3)

On arrival at the port to which the distressed seaman has been conveyed, the Shipping Master, or the Indian Consular

Officer, as the case may be, shall pay to the Master of the ship, in addition to the sum provided for in rule 15, such additional charges as have been agreed to by the Indian Consular Officer at the port from which the seaman was shipped.

18.

Seaman at infected ports.

(1)

Notwithstanding anything contained in rule 10, no distressed seaman who has suffered from cholera, yellow fever, plague or some other infectious disease, or who is at a port infected at the time with any such disease, shall be sent to any port or place, whether such port or place be similarly infected or not, without the Indian Consular Officer obtaining a certificate from a duly qualified medical practitioner that the seaman is not a source of danger to others.

(2)

The certificate referred to in sub-rule (1) shall state the nature of the disease from which the distressed seaman had suffered and which infected the port and shall be delivered by the Indian Consular Officer to the Master of the Conveying ship for production, if necessary, to the Health authorities at ports of call. Such certificate shall be retained by the Master until the distressed seaman is landed at his proper return port or a port en route. In the latter case, the certificate shall be handed over to the Indian Consular Officer at a foreign port or the Shipping Master at a port in India along with the Conveyance Order.

19.

Recovery of Expenses.

(1)

When a distressed seaman is landed at his proper return port, the Shipping Master at that port shall, after complying with the provisions of rule 15, determine what portion, if any, of the expenses incurred on behalf of such seaman could be deemed to be "excepted expenses" as defined in clause (b) of sub-section (36) of section 3 of the Act.

(2)

All repatriation expenses, inclusive of excepted expenses, which constitute a debt to the Central Government, shall be recovered by the Shipping Master referred to in sub-rule (1) from the owner or agent of the ship to which the seaman belonged at the time of his discharge or other event which resulted in his becoming distressed, unless the Shipping Master deducts such sum directly from the seaman's wages which have been deposited with him in accordance with section 122 (3) of the Act.

20.

Recovery from wages.

(1)

The owner or agent of the ship mentioned in the foregoing rule, if he is desirous of recovering the excepted expenses from the wages of the distressed seaman shall furnish the Shipping Master with an account of the expenses, together with such vouchers as may be reasonably required, and the Shipping Master shall, if he is satisfied as to the correctness of the claim, deduct the amount from the wages.

(2)

All deductions from a seaman's wages shall be subject to the provisions of section 201 of the Act.

21.

Credit to Government.

- All repatriation expenses which constitute a debt to the Central Government and which are recovered by the Shipping Master shall be credit to the appropriate head of account.

22.

Evidence of distress.

- The Shipping Master to whom a Conveyance Order in respect of a distressed seaman is delivered shall be deemed to be an officer specified by the Central Government for the purpose of section 165 of the Act and he may, on the strength of such order, issue a certificate to the effect that the seaman was in distress.

23.

Returns.

(1)

As soon as possible after a distressed seaman is sent from his port, the Indian Consular Officer shall send to the

Director-General returns of expenses in forms 'D' and 'E'.

(2)

When an Indian Consular Officer receives form 'C' in respect of any distressed seaman, such form shall also be sent to the Director-General along with the forms referred to in sub-rule (1).

Issued by the Government of India

I

Form 'A'

[See rule 3(2)]

Affidavit

I, the undersigned late of the Ship of Official Number temporary resident at..... do solemnly and sincerely declare as follows :-

* (1) That I belong to the State of and that I was born at.....in the year

(2)

That I was shipped on my last voyage aton the day of.....19.....and served on board until the..... day of..... 19.....when my services ended owing to..... [The ground for my discharge/desertion was.....].

(3)

That I have since been employed as.....at.....but am now in distress owing toand am desirous of returning to

(4)

That my last address in India was..... where resided from..... 19..... to..... 19.....

(5)

Name of relative or friend..... Address.....

And I make this solemn declaration conscientiously believing the same to be true.

Signature or L.T.I. of Seaman.....

Declared before me atthe day of19.....Name and Title Officer19

*Number of Discharge Book or Registration Book produced by seaman.....

Description of any other documents produced in support of identity.....

Names of Ships in which seaman had previously served

Form 'B'

[see rule 14(2)]

Conveyance Order

Govt.

of India Seal

ORDER

FOR THE CONVEYANCE OF A DISTRESSED SEAMAN

Merchant

Shipping Act, 1958

(Sec.

162 and 163)

For

use at the Shipping Office

No.

Year

PART

1.

Order

to Master of Conveying Ship.

To the Master of Ship Official No.....Port of Registry

The Merchant Shipping (Distressed Seamen) Rules, 1960

Pursuant to the Merchant Shipping Act, 1958 (44 of 1958)

) Section 163, you are hereby required to receive on board your ship and convey to the seaman named below :

For his subsistence if Supernumerary over and above the complement of the crew you will be paid at the rate prescribed by the Government of India on complying with the requirements mentioned herein.

Name

of Seaman

Rank/Rating

and Continuous Discharge Certificate No.

Name,

Official No. Port of Registry of last Ship

Nationality,

if foreign

(Full particulars of Seaman's last voyage to be entered on Page 2)

Dated at this day of19

SealSignature

.....Title

An endorsement as to the conveyance should be made on the Agreement with the crew of the conveying ship and the seaman's proper return port should be stated.

The seaman's effect and Discharge Book should accompany him.

Important Information For Master Of Conveying Ship

Entries should be made in the Official Log Book of the receipt on board of the distressed seaman and of any medical attention or comforts given of his disembarkation.

If the seaman is transferred to any other ship, the particulars, with the date of transfer and the Ship's name, must be entered at the time of the transfer in the Official Log Book of both ships.

On arrival at the port to which the seaman is ordered to be conveyed, the Master shall arrange for him to be taken to the Shipping Office if in India, or to the India Consular Officer abroad.

Responsibility for the payment of the claim will not be accepted unless the Seaman is produced or adequate reasons furnished to show why this cannot be done.

When the Master appears before the Shipping Master or other Officer he must make the declaration overleaf.

A

SEPARATE FORM TO BE USED FOR EACH SEAMAN.

Per

day

The

conveyance rates allowed by the Government of India are :-

Rs.

1.

For the conveyance of certificated officers when diet and accommodation is superior to that usually afforded to distressed seaman are furnished

7

2.

For the conveyance of other members of the crew when afforded the seaman diet as European seaman

5

3.

For conveyance of other members of the crew on Indian or similar diet

3

4.

For extra diet

1

(in

addition to above).

Part 2 ? . Particulars of the Seaman's last voyage, to be completed by the Officer who issues the order.

It is most important that the undermentioned particulars of the seaman's 1st voyage should be correct as they form the basis of settlement with the seaman when landed.

WHERE

SHIPPED NAME, PORT OF REGISTRY AND OFFICIAL NO. OF SHIP

SEAMAN'S

PROPER RETURN PORT,

i.e.,

final Port of designation as agreed by him (Sec. 3)(33) M.S. Act, 1958)

WHERE

DISCHARGED OR LEFT BEHIND CAUSE OF LEAVING SHIP, WAS SEAMAN

DISCHARGED WITH OFFICIAL SANCTION ?

e.g.,

(1)

Illness or injury

(2)

Imprisonment.

(3) Termination

of agreement.

(4)

Mutual consent.

(5)

Other cause : to be specified.

Particulars

of Expenses incurred

Date

Place

Expense

incurred

Purpose

Remarks

Officer's

Signature.....

Part 3 ? . Declaration to be made by the Master of the conveying ship before the Shipping Master or Indian Consular Officer at the port to which the Seaman is conveyed.

Complement

of Crew

No.

of crew while the Distressed seamen was being conveyed

Date

when subsistence commenced

If

landed where? If not landed cause to be stated

Date

when landed or otherwise disposed of

No.

of days subsisted

IMaster of the ShipOfficial No..... do solemnly and sincerely declare that the Seaman above referred to was maintained by me for the period stated during the whole of which time I had my full complement of men (excepting) exclusive of the aforesaid Seaman, and that the above statements are correct.

Date

.....Master's Signature

Claim For Medical Attendance And Extra Diet, If Any

This form is now to be delivered by the Master of the Ship to the Shipping Master or the Indian Consular Officer who will examine it carefully making reference to the Ship's papers and inquires of the Seaman conveyed. If the Officer thinks that there is any reason to doubt, the correctness of the above Declaration, or any of the particulars given on this form, he will refuse payment, and report the matter to the Director-General of Shipping, Bombay, with full explanation of his reason for so refusing. If there is no reason to doubt the correctness of the particulars given by the Master and the claim is in order, he will then calculate the amount to be paid according to his instructions, and pay the same to the Master, first filling up the certificate below.

Part 4 ? . Certificate of the Shipping Master or the Indian Consular Office at the Port where the Seaman is landed.

No.

of days maintained

Rate

per day

Amount

I

CERTIFY that the above declaration was made before me and that the amount shown in the margin is due for the conveyance of the above named seaman.

Date

at.....this.....day

of.....19.....

Medical

Attendance, extra diet, etc.

Signature

of Shipping Master or Indian Consular

Officer.....

Part 5

Receipt of Master for Conveyance.

Received the sum of :-

Rupees

DateSignature of Master

Part 6 ? . - Particulars of expenses incurred by the Shipping Master at the port in India at which a Seaman is landed but which is not his proper return port.

Return Port expenses :

Rail Fare

to.....

Subsistence.....

I declare that I am proceeding to

:

(Address).....

Total

I acknowledge receipt of :

Rail

Fare.....

Subsistence,

etc.....

Total :

Rupees.....

Signature or L.T.I. Of Seaman

?.....

Date.....

Summary Of Expenses

Rs. nP.

1. Conveyance expenses

2. Medical Attendance, etc.

3. Return Port expenses

(a)

Rail Fare

(b)

Subsistence

(c)

Boarding

Total

Claims For Medical Attendance And Extra Diet

In special cases where in the opinion of the Medical Officer, the health of a Seaman conveyed under this Order demands Medical Attendance, extra diet or, in exceptional cases, wines, entries should be made in the Official Log Book of the Days on which such attendance etc. was given and signed by the Master and the Medical Officer who should complete the form below in order to obtain the allowance for such attendance, extra diet, etc.

NATURE

OF ILLNESS

Dates

upon which Medical Attendance or Extra Dict. Or both were given

No.

of Days

Wines

and Spirituous Liquours supplied

Total

Amount Date

Medical

Attendance

Extra

Diet

Description

Price

Certified in accordance with Official Log Book.

.....Master

.....Medical Officer.

I hereby acknowledge having received the Medical Attendance, etc. stated herein.

Signature of Seaman

Form 'C'

[See rule 14(3)]

Port of

For use at Shipping Office.

No.

Accounts Of Expenses

Notes. - 1. This form should be used in the case of a Seaman sent to another port or place when for any reason a Conveyance Order is not issued, and the passage or travelling expenses have been prepaid or otherwise provided for. It should not be used in case where a conveyance Order. Form 'B'. is issued.

2. This form is to be placed in a sealed envelop and handed to the Seaman to be delivered to the Officer named hereunder. The Seaman should be cautioned that if the letter is tampered with in any way, payment of balance of wages due to him may be delayed.

To

at the Port of

I have this day sent the Seaman named below to your place.

(1)

in search of employment.....

(2)

for hospital treatment

(3)

for conveyance to

(4)

in the followingcircumstancesviz.....

Delete lines not place en route applicable

Note-If any Indian Consular Officer at any place en route assists the seaman he should state overleaf the expense incurred.

Date

Signature and Title of Officer

Name

of seaman

Continuous

Discharge Certificate No.

Name,

Official No and Port of Registry of Ship in which he last served

Date

of Birth

Place

of Birth

Rank

or Rating

Address

on Agreement with Crew

Particulars

of expenses incurred

Date

Expense

incurred

Purpose

Remarks

Officer's

Signature.....

Note for the guidance of the officer at the place to which the seaman is sent.

If the distressed seaman is sent home under Conveyance Order (Form 'B'), the amount of expenses incurred as enter overleaf should be entered in the column provided on the Order.

This form should be sent to the Director-General of Shipping, Bombay, together with Form 'D' and 'E'.

Shipped at

The Merchant Shipping (Distressed Seamen) Rules, 1960

Left at on
Cause of discharge or distress
Whether discharged with official sanction
If illness, hurt or injury, state nature, and
whether due to seaman's own wilfulact, default or misbehavior.....
Proper return Port
Mode of conveyance
Particulars of expenses, if any, incurred while seaman is en route.
Date
Place
Expense
incurred
Purpose
Remarks
Officer's
Signature.....
Form 'D'

[See rule 23(1)]

Expenses Incurred In Respect Of Distressed Seamen By Indian Consular Officer

Reference

No. of relevant Form 'B'

Name
of seaman

Name
of ship to which he belonged at time of discharge for other event
resulting in seaman becoming distressed

Place
of Discharged

Cause
of Discharge

Expenses
Incurred

Remark

1
2
3
4
5
6
7

Form 'E'

[See rule 23(1)]

Details of expenses incurred by the Indian Consular Officer at.....in respect ofof
the.....O.N..... of

Particulars of Expenses at.....

Date

Currency

Rupees

19

SUBSISTENCE ON PASSAGE PER

?.....to.....

HOSPITAL

to.....days

@.....per

day.....

BOARDING

to.....days

@.....per

day.....

TRAVELLING

BOAT, HIRE, PORTERAGE, ETC.

MEDICAL

ATTENDENCE

CONVEYANCE

TO PROPER RETURN PORT (?.....)

SUBSISTENCE

ON JOURNEY PORTERAGE

(At

the exchange of per)

Total

Date.....19.....

Indian

Consular Officer.

II

[See rule 15(2)

Rates per diem of payment for the subsistence and passage of distressed seaman who are sent on board and Indian ship and are in excess of the number wanted to make up the complement of the crew or who are rescued at sea by Indian vessels.

For

steam or motor ships

For

sailing vessels

Rs.

Rs.

1.

For the conveyance of certified officers, when diet and accommodation is superior to that usually afforded to distressed seamen are furnished

7

5

2.

For the conveyance of other members of the crew when afforded the same diet as European seamen

5

4

3.

For the conveyance of other members of the crew on Indian or similar diet

3

2

4.

For extra diet

1

(In

addition to above)

NOTE - In the case of medicines, etc. the amount may be paid after verifying the details of expenses furnished by the Master and scrutinising the entries in Official Log Book, etc.

Related AI tags, queries and research notes

Translation